

SENATE BILL No. 235

DIGEST OF INTRODUCED BILL

Citations Affected: IC 9-13-2; IC 9-30; IC 35-33-8-13; IC 35-52-9.1-61.5.

Synopsis: Intelligent speed assistance device. Defines an "intelligent speed assistance device" as an aftermarket device that uses technology to limit the speed of a motor vehicle to not more than the speed limit of the area being traveled. Allows a court to require a person who has been convicted of a crime for which the operation of a motor vehicle is an element of the offense to use an intelligent speed assistance device. Requires the court to notify the bureau of motor vehicles (bureau) if an order is issued requiring the use of an intelligent speed assistance device and for the bureau to send a notice to the individual subject to the court order. Makes it a Class B misdemeanor to tamper with, or solicit another person to tamper with, an intelligent speed assistance device. Permits the bureau to establish rules related to the use of intelligent speed assistance devices and to approve vendors of intelligent speed assistance devices.

Effective: July 1, 2026.

Becker

January 8, 2026, read first time and referred to Committee on Homeland Security and Transportation.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 235

A BILL FOR AN ACT to amend the Indiana Code concerning motor vehicles.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 9-13-2-82.7 IS ADDED TO THE INDIANA CODE
- 2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
- 3 1, 2026]: **Sec. 82.7. "Intelligent speed assistance device" means an**
- 4 **aftermarket device installed in a motor vehicle that uses technology**
- 5 **to limit the speed of the motor vehicle to not more than the speed**
- 6 **limit of the area within which the vehicle is traveling.**
- 7 SECTION 2. IC 9-13-2-196, AS AMENDED BY P.L.164-2020,
- 8 SECTION 33, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 9 JULY 1, 2026]: Sec. 196. (a) "Vehicle" means, except as otherwise
- 10 provided in this section, a device in, upon, or by which a person or
- 11 property is, or may be, transported or drawn upon a highway. The term
- 12 does not include the following:
- 13 (1) A device moved by human power.
- 14 (2) A device that runs only on rails or tracks.
- 15 (3) A wheelchair.
- 16 (4) An electric foot scooter.
- 17 (b) For purposes of IC 9-17, the term includes the following:



(1) Off-road vehicles.

(2) Manufactured homes or mobile homes that are:

(A) personal property not held for resale; and

(B) not attached to real estate by a permanent foundation.

(3) Watercraft.

(c) For purposes of IC 9-22 (except IC 9-22-6) and IC 9-32, the term refers to a vehicle or watercraft of a type that must be registered under IC 9-18-2 (before its expiration) or IC 9-18.1, other than an off-road vehicle or a snowmobile under IC 9-18-2.5 (before its expiration) or IC 9-18.1-14.

(d) For purposes of IC 9-30-5, IC 9-30-6, IC 9-30-8, ~~and~~ IC 9-30-9, **and IC 9-30-17**, the term means a device for transportation by land or air. The term does not include an electric personal assistive mobility device.

SECTION 3. IC 9-30-13-10 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 10. (a) A court may require a person who has been convicted of a crime for which the operation of a motor vehicle is an element of the offense to use an intelligent speed assistance device under IC 9-30-17.**

(b) A court may require a person to use an intelligent speed assistance device under this section as a condition of specialized driving privileges under IC 9-30-16 or as a condition of probation.

(c) A court may order that an intelligent speed assistance device is installed in any vehicle that:

(1) is owned by the person subject to the court order; or

(2) the person subject to the court order intends to operate.

(d) The person who is subject to the court order under this section shall pay all costs associated with the intelligent speed assistance device, as described in IC 9-30-17-6(b), unless the court determines that the person is indigent.

(e) A court must notify the bureau if an order is issued under this section.

SECTION 4. IC 9-30-13-11 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 11. If the bureau receives an order that an intelligent speed assistance device has been required under section 10 of this chapter or IC 35-33-8-13, the bureau shall immediately:**

(1) mail a notice to the person's address contained in the records of the bureau; or

(2) send an electronic notice if the person has indicated a preference for receiving notices from the bureau



electronically;
 stating that the person may not operate a motor vehicle unless the
 motor vehicle is equipped with an intelligent speed assistance
 device under IC 9-30-17.

SECTION 5. IC 9-30-13-12 IS ADDED TO THE INDIANA CODE
 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 1, 2026]: Sec. 12. (a) A person who knowingly or intentionally
 tampers with an intelligent speed assistance device for the purpose
 of:

- (1) circumventing the intelligent speed assistance device; or
- (2) rendering the intelligent speed assistance device inaccurate
 or inoperative;

commits a Class B misdemeanor.

(b) A person who has been ordered under section 10 of this
 chapter or IC 35-33-8-13 to operate a vehicle with an intelligent
 speed assistance device that solicits another person to tamper with
 the intelligent speed assistance device for the purpose of:

- (1) circumventing the intelligent speed assistance device; or
- (2) rendering the intelligent speed assistance device inaccurate
 or inoperative;

commits a Class B misdemeanor.

SECTION 6. IC 9-30-17 IS ADDED TO THE INDIANA CODE AS
 A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY
 1, 2026]:

Chapter 17. Intelligent Speed Assistance Devices

Sec. 1. If a court orders the installation of an intelligent speed
 assistance device in a motor vehicle under IC 9-30-13-10 or
 IC 35-33-8-13, the court shall set the time that the installation must
 remain in effect. The term may not exceed the maximum term of
 imprisonment the court could have imposed.

Sec. 2. If a court orders a person under IC 9-30-13-10 or
 IC 35-33-8-13 to operate only a vehicle that is equipped with an
 intelligent speed assistance device, the bureau shall include that
 condition when issuing or reinstating a license.

Sec. 3. An intelligent speed limiting device shall utilize GPS
 technology to determine the speed limit of each area within which
 a vehicle equipped with an intelligent speed limiting device is
 traveling. The technology shall allow for reasonable accelerations
 above the speed limit, if necessary, for safety reasons based upon
 traffic conditions.

Sec. 4. (a) The commissioner may adopt rules under IC 4-22-2
 to implement this chapter.



1 (b) A vendor or provider may submit an application for
2 approval of an intelligent speed assistance device in a form
3 prescribed by the bureau.

4 (c) If testing is required to determine whether an intelligent
5 speed assistance device complies with standards set forth by the
6 bureau, the testing must be performed by an independent entity
7 designated by the bureau. The vendor shall pay any testing
8 expenses under this section.

9 (d) If the commissioner finds that the intelligent speed assistance
10 device complies with the standards of the bureau, the
11 commissioner may approve the use of the intelligent speed
12 assistance device.

13 (e) The bureau shall, not later than November 1 of each year,
14 provide a report to the legislative council in an electronic format
15 under IC 5-14-6 containing the following:

16 (1) The number of intelligent speed assistance devices
17 approved by the bureau.

18 (2) The number of intelligent speed assistance devices
19 currently installed in Indiana.

20 (3) The number of intelligent speed assistance devices rejected
21 by the bureau.

22 (f) The criminal justice institute may:

23 (1) evaluate reports submitted by the bureau;

24 (2) evaluate and study speed limiting issues; and

25 (3) make recommendations to the bureau.

26 The bureau shall consider any recommendations made by the
27 criminal justice institute.

28 Sec. 5. The maintenance of an intelligent speed assistance device
29 is the responsibility of the manufacturer.

30 Sec. 6. (a) A vendor or provider whose intelligent speed
31 assistance device is approved under section 4 of this chapter shall
32 provide a report to the court that ordered the device or the court's
33 designee within one (1) week if either of the following occur:

34 (1) The date and time of any incident wherein the speed
35 assistance device has been improperly removed, tampered
36 with, or rendered inoperative.

37 (2) Failure of the person ordered to use an intelligent speed
38 assistance device to appear at the designated device vendor or
39 provider for maintenance, repair, monitoring, inspection, or
40 replacement of the intelligent speed assistance device.

41 (b) Unless the court has determined the person is indigent, the
42 person subject to a court order requiring the use of an intelligent



1 speed assistance device shall pay for the installation, leasing,
 2 maintenance, and removal of the intelligent speed assistance
 3 device, as well as any additional expenses ordered by the court or
 4 the court's designee.

5 (c) An approved vendor or provider of intelligent speed
 6 assistance device shall provide any reports or data requested by the
 7 bureau.

8 SECTION 7. IC 35-33-8-13 IS ADDED TO THE INDIANA CODE
 9 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 10 1, 2026]: Sec. 13. (a) As a condition of bail, a court may require a
 11 person who has been charged with a crime for which the operation
 12 of a motor vehicle is an element of the offense to use an intelligent
 13 speed assistance device under IC 9-30-17.

14 (b) A court may order as a condition of bail that an intelligent
 15 speed assistance device is installed in any vehicle that:

16 (1) is owned by the person subject to the court order; or

17 (2) the person subject to the court order intends to operate.

18 (c) The person who is subject to bail conditions under this
 19 section shall pay all costs associated with the intelligent speed
 20 assistance device, as described in IC 9-30-17-6(b), unless the court
 21 determines that the person is indigent.

22 (d) A court must notify the bureau if a bail order is issued under
 23 this section requiring the use of an intelligent speed assistance
 24 device.

25 SECTION 8. IC 35-52-9.1-61.5 IS ADDED TO THE INDIANA
 26 CODE AS A NEW SECTION TO READ AS FOLLOWS
 27 [EFFECTIVE JULY 1, 2026]: Sec 61.5. IC 9-30-13-12 defines crimes
 28 concerning the tampering of an intelligent speed assistance device.

